

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0007850

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: COUNTY OF MARIN	
vs.	
DEFENDANT: TIM SAKACH	

NATURE OF PROCEEDINGS: MOTION – OTHER: PERMANENT INJUNCTION

RULING

The court issued a preliminary injunction to abate a public nuisance located at the property owned by Defendant Tim Sakach on May 28, 2026. The matter is on for hearing on issuance of a Permanent Injunction.

Neither party has filed declarations to provide the court with an update as to whether the nuisance has been (or is being) abated.

Appearances are required to address the necessity of further injunctive relief.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008037

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: RYAN WAGNER, AN
INDIVIDUAL

vs.

DEFENDANT: JAGUAR LAND ROVER
NORTH AMERICA, LLC, A DELAWARE
LIMITED LIABILITY COMPANY, ET AL

NATURE OF PROCEEDINGS: 1) DEMURRER
2) MOTION - STRIKE

RULING

Jaguar Land Rover North America, LLC's ("Defendant") Demurrer to the Answer is **SUSTAINED** with leave to amend as to the Third, Fifth, Eleventh, Seventeenth, Twenty-First, Twenty Second, Twenty-Fifth, and Twenty-Seventh Affirmative Defenses.

In all other respects it is **OVERRULED**.

Defendant's Motion to Strike is **GRANTED** with leave to amend as to the First, Seventh, Eighth, Ninth, Eighteenth, Twenty-Sixth, Thirty-Sixth, Fortieth, and Fiftieth Affirmative Defenses. It is **DENIED** as to the remaining Affirmative Defenses.

I. PLAINTIFF'S REPLY

Plaintiff's Request to Deem Reply in Support of Demurrer as filed July 10, 2026, is **GRANTED**. The Reply was timely served. It was ultimately filed July 13, 2026, after being rejected by the clerk's office. The Court sees no prejudice from considering the Reply as timely filed.

II. DEMURRER LEGAL STANDARD

The function of a demurrer is to test the legal sufficiency of the challenged pleading. (*Hernandez v. City of Pomona* (1996) 49 Cal.App.4th 1492, 1497.) As a general rule, in testing a pleading against a demurrer, the facts alleged in the pleading are deemed to be true, however improbable they may be. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court gives the pleading a reasonable